

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

MOSES DAMISA, *Complainant*

v.

TRANS ATLANTIC SHIPPING LLC, *Respondent*.

DOCKET NO. 1967(F)

Served: January 21, 2021

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

ORDER DESIGNATING ADMINISTRATIVE LAW JUDGE AND REQUIRING JOINT STATUS REPORT

On December 22, 2020, the Commission issued a Notice of Filing of Small Claims Complaint and Assignment, assigning this proceeding to the Office of Administrative Law Judges. On January 15, 2021, Respondent filed its answer and indicated that it did not consent to the use of informal procedures.

Because Respondent does not consent to the use of the Subpart S procedures, the claim will be adjudicated by an administrative law judge under procedures set forth in 46 C.F.R. Subpart T. 46 C.F.R. § 502.311. The Docket Number is therefore changed to 1967(F). If parties are represented, the representative should file a notice of appearance. See Exhibit No. 1 to Subpart B 46 C.F.R. §§502.23, 502.26, 502.27 of Part 502.

The Commission's Rules provide that the "administrative law judge may require the submission of additional affidavits, documents, or memoranda from complainant or respondent." 46 C.F.R. § 502.314. The parties are required to submit a joint status report with the information below by February 22, 2021.

The parties are instructed to discuss whether they can reach a settlement of this proceeding. By February 11, 2021, the parties must contact the Commission's Office of Consumer Affairs and Dispute Resolution Services ("CADRS") to participate in a preliminary conference to determine whether the matter may be resolved through mediation. The joint status report *must not provide details regarding settlement negotiations* but should indicate whether or not CADRS was contacted.

The Commission's rules governing discovery are not applicable to proceedings under Subpart T; therefore, there is no formal discovery in this proceeding. While there is no formal discovery, the parties are urged to cooperate and voluntarily produce information requested by the other party. If a party is unable to obtain information by voluntary means, in the joint status report, they should identify the information requested and explain why the information is

relevant to this proceeding, what attempts have been made to obtain the information voluntarily, and why the information cannot be obtained in some other manner. In addition, the parties may describe any issues that need to be resolved prior to issuing a briefing schedule.

The Commission recently modified its interpretation of 46 U.S.C § 41102(c), requiring establishment of five elements to prove a violation of the section. The parties are encouraged to review docket 18-06, available at www2.fmc.gov/readingroom/proceeding/18-06. In addition, pursuant to the Howard Coble Coast Guard and Maritime Transportation Act of 2014, 46 U.S.C. § 41305(e), and Commission Docket No. 15-06, under certain circumstances, attorney fees may be awarded to the prevailing party in a complaint proceeding. It is therefore in the best interest of all parties to proceed expeditiously.

Due to challenges associated with COVID-19, the Commission is temporarily waiving certain requirements in 46 C.F.R. part 502 related to the paper filing of documents, ink signatures, and service by mail of complaints. Order, Docket No. 20-07 (May 12, 2020), www2.fmc.gov/readingroom/docs/20-07/20-07_order.pdf; *see also* Temporary Adjustments in FMC Operations (Mar. 19, 2020), www.fmc.gov/temporary-adjustments-in-fmc-operations/.

It is hereby **ORDERED** that the Honorable Erin Wirth will preside at such hearings and presentation of evidence as may be necessary to resolve this proceeding and to issue an initial decision or dispositive ruling. The parties shall file a joint status report by February 22, 2021. All filings subsequent to this notice should be emailed to the Office of the Secretary at secretary@fmc.gov, with courtesy copies to opposing counsel or party and to this office at judges@fmc.gov.



Erin M. Wirth
Chief Administrative Law Judge